

25STCP01673 25STCP01673

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JOINT MOTION TO COMPEL RESPONSES TO PETITIONERS'

DOCUMENT REQUEST SET 1

Date: 8/20/26

(1:30 PM)

Case: Peiann (Diane) Lee v. Los

Angeles City Ethics Commission, et al. (25STCP01673)

TENTATIVE RULING:

In these

consolidated actions, petitioners Peiann (Diane) Lee and Lorraine New have filed a Joint Motion to Compel Further Responses to Request for Production of Documents, Set 1. For the reasons that follow, the Joint Motion is DENIED.

I.

FACTUAL

AND PROCEDURAL BACKGROUND

Petitioners

Peiann (Diane) Lee and Lorraine New separately filed petitions for writs of mandate seeking remedies that include quashing the Los Angeles City Ethics Commission's issuance of subpoenas to compel them to interview with the attorney prosecuting the matter pending against non-party Samuel Leung. (Lee Pet. ¶ 18; New Pet. at pp. 1, 13.) It is alleged that the Los Angeles City Ethics Commission ("LACEC") seeks to pursue an enforcement action against Leung,

concerning allegations of campaign finance violations. (Lee Pet. ¶ 1; New Pet. ¶ 1.) Petitioners allege that LACEC has illegally obtained grand jury materials, reviewed them, and used them in its Amended Probable Cause Report, which was filed in February 2022 and included petitioners as named respondents. (Lee Pet. ¶¶ 12, 14; New Pet. ¶¶ 22-23.) Petitioners further allege that LACEC and LACEC prosecutor Marian Thompson are tainted by LACEC's exposure to the grand jury material. (Lee Pet. ¶ 32; New Pet. ¶¶ 36-41.)

Upon learning about the purported use of grand jury material, petitioners sought relief from Department 56W of this Court in May 2022, which led to LACEC dropping its claims against petitioners and only pursuing claims against Leung. (Lee Pet. ¶¶ 16-17; New Pet. ¶¶ 24, 26.) LACEC has subpoenaed petitioners to sit for interviews that concern the same subject matter as the grand jury testimony. (Lee Pet. ¶ 18; New Pet. ¶ 27.) Petitioners separately objected to the subpoenas on various grounds, including that the prior possession and use of the grand jury material requires disqualification of the entire LACEC. (Lee Pet. ¶ 19; New Pet. ¶ 28.) Hannah Tuber, Management Analyst for the City of Los Angeles, was designated by Executive Director Tristan to rule on the objections, and, on May 1, 2025 as to Lee's objections, and, on July 7, 2025 as to New's objections, issued rulings finding the subpoenas valid. (Lee Pet. ¶ 21; New Pet. ¶¶ 30-35 .) With regard to the disqualification objection, Tuber declined to address this argument on the grounds that petitioner lacked standing to raise it, as mere witnesses. (Ibid.)

On May 6, 2025, petitioner Lee filed a Verified Petition for Writ of Administrative Mandate and Writ of Mandate pursuant to CCP § 1085 against LACEC in LASC case no. 25STCP01673. On May 8, 2025, the Court granted petitioner Lee's ex parte application to stay the enforcement of the subpoena against her. On July 11, 2025, petitioner New filed a Verified Petition for Writ of Administrative Mandate and Writ of Mandate pursuant to CCP § 1085 against LACEC in LASC Case No. 25STCP02573. On July 21, 2025, the parties stipulated to stay the enforcement of the subpoena against her. On August 18, 2025, the Court deemed the two actions related and ultimately consolidated them for all purposes on October 14, 2025, pursuant to the parties' stipulation.

On February 27, 2026, petitioners propounded their Requests for Production of Documents to LACEC. On March 31, 2026, LACEC responded with only objections. Now,

petitioners jointly seek to compel responses to these requests.

II.

DISCUSSION

To properly evaluate petitioner's request for documents, it is necessary to place in context the discovery request and for what purposes such discovery is sought.

In their respective petitions, petitioners seek relief pursuant to CCP §§ 1085 and 1094.5 as well as LAAC § 24.24(f)(3), and they request the Court to do the following: (1) quash the subpoena issued by LACEC on April 21, 2025 to the petitioners; and (2) disqualify LACEC and Enforcement Officer Marian Thompson from the administrative proceedings. (Lee Pet. ¶¶ 28-44 & Prayer for Relief ¶¶ 1-3; New Pet. ¶¶ 7-8, 43-48 & Prayer for Relief ¶¶ 1-3 .)

It does not appear to this Court that either CCP § 1085 nor CCP § 1094.5 provide the proper authority or vehicle for the relief petitioners seek. Traditional mandamus under CCP § 1085 is intended to compel a respondent to perform a ministerial duty. (*Pomona Police Officers Ass'n v. City of Pomona* (1997) 58 Cal. App. 4th 578, 583-84.) If the referenced duty is discretionary, traditional mandamus may not be used to compel the exercise of discretion in a particular manner or to order a specific result. (*Sierra Club v. Dept. of Parks & Recreation* (2012) 202 Cal.App.4th 735, 740.) For a discretionary duty, traditional mandamus may only be sought to correct a clear abuse of discretion in carrying out such duty, which is defined as arbitrary, capricious, or entirely lacking in evidentiary support to obtain relief under section 1085. (See *Kahn v. L.A. City Emps.' Ret. Sys.* (2010) 187 Cal. App. 4th 98, 106.) Here, the petitions do not appear to seek to enforce any particular mandatory or ministerial duty; rather, petitioners seek to challenge the decision not to uphold their objections to the LACEC subpoenas for their testimony. Thus, CCP § 1085 appears to be inapplicable here.

As for relief under CCP § 1094.5, petitioners seek judicial review of the May 1, 2025 and July 7, 2025 Orders, respectively, issued by the designee of the Ethics Commission, Management Analyst Hannah Tuber, denying petitioners' objections to the LACEC subpoenas for testimony in the administrative matter concerning Leung. (Lee Pet. ¶¶ 2-3; New Pet. ¶ 2-3.) Section 1094.5 writ relief is available "for

the purpose of inquiring into the validity of any final administrative order or decision made as a result of a proceeding by law a hearing is required to be given, evidence is required to be taken, and discretion in the determination of facts is vested in the" agency, board, or officer making the determination.

(CCP § 1094.5(a).) Here, the decisions

denying petitioners' objections to the LACEC subpoenas are not final adjudicatory decisions resulting from mandated evidentiary hearing for which section 1094.5 administrative mandamus is available.

Although CCP § 1085 nor CCP §

1094.5 seem to be improper legal bases to seek relief, New's petition also includes a basis for review pursuant to LAAC § 24.24(f)(3). It states in pertinent part that "A petition for judicial review of the Executive Director's ruling [on an objection] must be filed within five calendar days after the date a ruling on a subpoena is issued. . . . " Both actions have been timely brought in compliance with this municipal provision. Effectively, LAAC § 24.24(f)(3) affords the Court judicial review over a discovery order, and typically, writs of prohibition have been used "to annul and prevent the enforcement of invalid discovery orders." (Board of Dental Examiners v. Superior Court (1976) 55 Cal.App.3d 811, 815; see also Pomona Valley Hospital Medical Center v. Superior Court (1997) 55 Cal.App.4th 93, 100 [reasoning that "[a] writ of prohibition is the proper means to review rulings allowing discovery" where "raising the issue on appeal is not an adequate remedy.") Thus, a writ of prohibition would appear to be a proper mechanism to limit the LACEC's issuance and use of a subpoena for testimony insofar as it were to be in excess of its jurisdiction. (See CCP § 1102 [writ of prohibition defined].)

Viewing the instant petitions as

petitions for writs of prohibition, the Court then applies the requirements of CCP § 1094.5(e) to petitioners' requests for discovery. As stated in section 1105 concerning writs of prohibition, "[t]he provisions of the preceding Chapter, except of the first four sections thereof, apply to this proceeding." The preceding chapter is Chapter 2, entitled Writ of Mandate, and the first four sections of that chapter are sections 1084, 1085, 1085.5 and 1086. Section 1094.5(e) is contained in Chapter 2, and it provides the mechanism for allowing extra-record evidence. Here, then, the Court considers whether petitioners' instant requests for documents and discovery beyond what was before Tuber when she denied petitioners' objections to the LACEC subpoenas are in accord with CCP § 1094.5(e)'s requirements for extra-record evidence.

Per CCP § 1094.5(e), the Court's consideration is limited by statute to the administrative record before the agency, as well as certain material which could not have appeared in the record despite the diligence of the parties during the course of the administrative adjudication. (See CCP § 1094.5(e); see also *City of Fairfield v. Superior Court of Solano County* (1975) 14 Cal.3d 768, 774-775 & fn.6 [noting that § 1094.5(e) operates to "restrict[] the scope of discovery"].) Specifically, § 1094.5(e) provides:

Where the court finds that there is relevant evidence that, in the exercise of reasonable diligence, could not have been produced or that was improperly excluded at the hearing before respondent, it may enter judgment as provided in subdivision (f) remanding the case to be reconsidered in the light of that evidence; or, in cases in which the court is authorized by law to exercise its independent judgment on the evidence, the court may admit the evidence at the hearing on the writ without remanding the case.

Furthermore, as discussed in *Pomona Valley Hosp. Medical Center v. Superior Court of Los Angeles County* (1997) 55 Cal.App.4th 93, 102:

[D]iscovery under section 1094.5, unlike general civil discovery, cannot be used to go on a fishing expedition looking for unknown facts to support speculative theories. The stringent requirements set forth in section 1094.5, subdivision (e) require the moving party to identify what evidence is sought to be discovered for purposes of adding it to the record; to establish the relevancy of the evidence; and to show that either (a) any such relevant, additional evidence was improperly excluded at the administrative hearing, or (b) it could not have been produced at the hearing with the exercise of reasonable diligence. (§ 1094.5, subd. (e).) If the moving party fails to make the required showing, it is an abuse of the court's discretion to allow posthearing discovery.

Here, petitioners seek further responses concerning communications between LACEC and the Los Angeles District Attorney's Office as well as LACEC's internal notes that relate to the grand jury material. (Bednarski Decl. Ex. 1 at pp. 1-2.) There appears to be no administrative record in connection with Tuber's rulings on petitioners' objections to the subpoenas and no showing that the discovery now sought by petitioners was excluded at the time of such rulings.

Furthermore, the Court finds that the requested discovery is not relevant to the subject matter of these consolidated actions. As stated above, petitioners challenge the rulings on their objections to the underlying subpoenas for their testimony. Petitioners acknowledge in their respective pleadings that the respective orders rejected their disqualification objection based on standing and did not address the substantive merits of the objection. (Lee Pet. ¶ 21; New Pet. ¶¶ 30-35.) The extra-record evidence and discovery petitioners now seek may arguably bear the issue of disqualification for the proceedings against non-party Leung, but it is wholly irrelevant to the issue of whether these petitioners have standing to raise that issue of disqualification.

For the foregoing reasons, the Court DENIES the instant Joint Motion to compel discovery

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